Founders' Interim Mutual Understanding

Friendly, concise acknowledgement for personal review and possible signature

DISCUSSION DRAFT — legal review advised before signing • November 7, 2026

Between Benjamin W. Conklin ("Ben") and Elliott T. Miller ("Elliott") concerning DW Toolbox INC, Minnesota file no. 1657232800022. Date: _____.

1 | Why we are writing this

We are working together to build and run Drywall Toolbox. We want an honest, shared written account of our understanding while our complete employment, equity and shareholder documents are being prepared. We value the work we each contribute and intend to treat each other fairly.

2 | Our present arrangement

Ben presently holds 100% of the corporation's issued shares according to our understanding. Elliott currently has no shares confirmed as issued to him. We expect to operate the business together with roughly equal overall workload, using different areas of expertise and supporting each other as needed.

3 | Roles we recognize

Elliott focuses on business workflows, customer/order/shipping coordination, inventory visibility, repair-case coordination, and related technical platform work. Ben focuses on physical repairs and fulfillment, vendor and receiving work, replenishment decisions, and return, warranty and pricing decisions. Both help with purchasing, picking/packing, planning and day-to-day operations. These descriptions do not create officer or director appointments or authorize actions beyond approved corporate permissions.

4 | Salary and future ownership we intend to document

We have discussed a future Elliott ownership target within the range of 30%–40%, progressively earned through service over a period to be determined. We also intend for Elliott to be paid an agreed startup salary, with a mandatory first compensation-adjustment process activated after objective financial stability conditions are satisfied. The dollar amount of any future adjustment is not yet agreed.

We have NOT settled the exact stake, vesting duration/start date, salary, increase-calculation mechanism, past-service credit, or source of shares. This note does not grant shares, stock options, salary or a guaranteed pay increase and does not substitute for required corporate authorization.

5 | How we will finish the formal terms

We will aim to meet and document the remaining employment and equity terms by: _____. At each discussion we will share relevant information reasonably necessary to evaluate contributions, compensation and the corporation's ability to pay, while protecting private business records. We understand neither founder has agreed to accept unnegotiated economic terms.

6 | Prior work and existing rights

We acknowledge that both founders have made contributions to building the business. We will separately identify past work, expenses, intellectual property, and any disputed ownership or compensation matters. This note does not assign pre-existing intellectual property or waive wages, reimbursement, ownership, or other rights either person already has under law or another valid agreement.

7 | What this document does and does not do

This is a written record of good-faith intentions and factual acknowledgments, not a complete or self-executing partnership, employment, stock-issuance or shareholder-control agreement. Any binding salary or equity obligation needs agreed definite terms and appropriate approvals. We understand that a written expression of intent alone does not guarantee Elliott future ownership.

We intend to review this document with Minnesota counsel before relying on it as a binding protection. Minnesota law governs interpretation of any legally enforceable provisions, to the extent applicable.

Acknowledged by

Benjamin W. Conklin Signature: _____ Date: _____

Elliott T. Miller Signature: _____ Date: _____

Optional company acknowledgment only if approved by authorized officer: DW Toolbox INC, by _____, title _____, date _____.